

National Women's Commission Act, 2017

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National Women Commission Act, 2074

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Amending Acts

1. Some Nepal Acts Amendment Act, 2075 2075.11.19

Act Number 30 of the year 2074

Preamble: Whereas, it is desirable to amend and consolidate the prevailing law relating to the functions, duties and powers of the National Women Commission to ensure gender justice by protecting and promoting the rights and interests of women and empowering women,

The Legislature-Parliament, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "National Women Commission Act, 2074."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) "Chairperson" means the Chairperson of the Commission, and this term also refers to the Acting Chairperson.

(b) "Commission" means the National Women Commission pursuant to Article 252 of the Constitution.

(c) "Prescribed" or "As prescribed" means prescribed or as prescribed in the rules made under this Act.

(d) "Member" means a member of the Commission, and this term also includes the Chairperson.

(e) "Constitution" means the Constitution of Nepal. Chapter-2

Provisions relating to the Functions, Duties and Powers of the Commission

3.

Functions, Duties and Powers of the Commission: In addition to the functions, duties and powers mentioned in Article 253 of the Constitution, the other functions, duties and powers of the Commission shall be as follows: (a) To review, monitor and evaluate policies, legal provisions and programs of the Government of Nepal relating to women for women empowerment, analyze whether such policies and programs are effective from the perspective of gender justice, and provide suggestions to the Government of Nepal for improvement. (b) To conduct studies and research on the implementation of provisions relating to the rights of women conferred by the Constitution and law, and provide suggestions to the Government of Nepal for the effective

implementation of such provisions. (c) To conduct studies and research on any problem or special situation arising from the cause of violence or discrimination against women, and provide suggestions to the Government of Nepal on strategies to be adopted to prevent the occurrence of such situation. (d) To recommend to the concerned bodies on necessary measures to increase women's access to capital, resources, means and technology to make women self-reliant and for empowerment. (e) To formulate and implement necessary information, awareness and consciousness-raising programs for the protection and promotion of women's rights and interests and women's empowerment. (f) To formulate and implement necessary programs to eliminate all forms of violence and discrimination against women and to eradicate customs and superstitions that create such violence and discrimination. (g) To recommend for arrangements to send women who are socially excluded, at risk, displaced or victimized due to violence or discrimination against women to safety centers or rehabilitation centers. (h) To monitor or cause to monitor the implementation status of recommendations made by the Commission. (i) To formulate and enforce a code of conduct for members and employees of the Commission. (j) To approve the annual program of the Commission. 4. Power to Seek Opinion and Advice: The Commission may seek advice or opinion from any constitutional body, government office or public institution in relation to its work and proceedings. 5. Power to Obtain Services of Experts: If any work required to be performed pursuant to the Constitution, this Act and prevailing federal law cannot be performed by the human resources working in the Commission, the Commission may, stating the reason therefor, obtain the services of experts in accordance with prevailing federal law. 6.

Power to Form Committee or Task Force: (1) The Commission may, by specifying the procedure, form any committee or task force for the purpose of performing work of a specific nature. (2) The terms of reference of the committee or task force formed pursuant to Sub-section (1) shall be as determined by the Commission at the time of forming such committee or task force. 7. Power to Coordinate and Cooperate: The Commission may, as required, coordinate and cooperate with government bodies or public institutions. Chapter-3 Procedure relating to Complaint Proceedings 8. Persons Who May File Complaint: (1) A complaint may be filed in writing or orally with the Commission by a victim or anyone on behalf of such person regarding a matter where a woman has been subjected to violence or social malpractice, or has been prevented from exercising women's rights, or any person or institution has prevented the exercise of women's rights. (2) If a complaint is received pursuant to Sub-section (1), the Commission must register such complaint in the registration book as prescribed. (3) If the Commission comes to know through any other means about matters related to Sub-section (1), the Commission shall record such information in writing and register it in the registration book pursuant to Sub-section (2). (4) No fee shall be charged for filing a complaint with the Commission under this Act. 9. Preliminary Inquiry: (1) The Commission shall conduct a preliminary inquiry into the complaint received pursuant to Sub-section (1) of Section 8 or the information received pursuant to Sub-section (3). (2) While conducting a preliminary inquiry pursuant to Sub-section (1), if it appears prima facie that a woman has been subjected to violence or social malpractice, or has been prevented from exercising women's rights, or any person or institution has prevented the exercise of women's rights, the Commission may order the concerned person, body or official to immediately stop such act. 10.

Investigation of Complaint: (1) If, during the preliminary inquiry pursuant to Section 9, it appears that a woman has been subjected to violence or social malpractice, or has been prevented from exercising women's rights, or any person or institution has prevented the exercise of women's rights, the Commission may itself investigate, or cause an investigation into such complaint by forming a committee as required, or by an authorized employee of the Commission, as prescribed. (2) While conducting an investigation pursuant to Sub-section (1), the Commission, the investigation committee or the authorized employee officer shall have

the following powers: (a) To summon any person and obtain information. (b) To order any person to submit any deed, document or evidence. (c) To conduct on-site inspection as required. (d) To summon any deed or copy thereof from any government or public office related to the subject under inquiry. (3) After the investigation pursuant to Sub-section (1) is completed, a report thereof shall be submitted to the Commission. (4) Other provisions relating to the investigation of complaints shall be as prescribed. 11. Non-Cognizance: Notwithstanding anything contained in Section 9 or 10, the Commission shall not investigate or take action on a matter that is under investigation or has already been investigated by any other body pursuant to prevailing law. 12. Power to Dismiss or File Complaint: (1) If, during the investigation pursuant to Section 9 or 10, it appears that such matter is not cognizable by the Commission, the Commission may dismiss or file such complaint stating the reason therefor. (2) If the Commission decides to dismiss or file a complaint pursuant to Sub-section (1), the concerned complainant shall be informed within seven days from the date of such decision. 13. Recommendation to File a Case: (1) If, during the investigation pursuant to Section 10, it appears necessary to file a case, the Commission shall, within the statute of limitations for filing a case on that matter, recommend to the concerned body to file the case and shall also inform the concerned person accordingly. Provided that, in the case of a case where the Government of Nepal is the plaintiff, it shall be submitted to the Attorney General. (2) While making a recommendation pursuant to Sub-section (1), the Commission may also provide the concerned body with copies of facts, papers and evidence collected during the investigation that would assist in filing the case. (3) If a letter requesting to file a case pursuant to Sub-section (1) is received, the Attorney General shall conduct an inquiry into that matter and decide whether or not to file a case. 14.

Provision relating to Mediation: (1) Notwithstanding anything contained elsewhere in this Act, if the concerned parties file a joint application requesting mediation regarding any complaint pending before the Commission, the Commission may cause mediation on matters that can be settled by compromise according to prevailing law. (2) After mediation is done pursuant to Sub-section (1) regarding any complaint, no complaint shall lie again in the Commission on matters other than the non-implementation of the mediated matter. (3) Other provisions relating to mediation shall be as prescribed. 15. Implementation of Recommendation, Decision or Order: (1) The Commission shall send a letter to the concerned person, body or official for the implementation of its recommendation, decision or order made pursuant to the Constitution or this Act. (2) If a letter is received from the Commission pursuant to Sub-section (1), the concerned person, body or official shall immediately implement matters that can be implemented immediately, and commence implementation of matters requiring time, and inform the Commission thereof. (3) If a matter communicated by the Commission pursuant to Sub-section (1) cannot be implemented for any reason, the concerned official, person or body shall inform the Commission stating the reason therefor within seven days. (4) If information is received pursuant to Sub-section (3), the Commission may reconsider the matter, make a decision, and send a letter to any person, body or official to implement any matter accordingly. Chapter-4 Conduct of Business of the Commission 16. Office of the Commission: (1) For the conduct of business of the Commission, there shall be one Central Office of the Commission in Kathmandu Valley. (2) The Commission may establish offices in provinces and other places as required. 17. Meeting of the Commission: (1) The work to be performed by the Commission pursuant to the Constitution or this Act shall be carried out according to the decision of the meeting of the Commission. (2) The meeting of the Commission shall be held on the date, time and place specified by the Chairperson as required. (3) The Secretary of the Commission shall fix the date, time and place for the meeting of the Commission and send a notice, along with the agenda for discussion in the meeting, to all members generally at least forty-eight hours before the meeting time. (4) If any member wishes to discuss any matter other than the matters mentioned in the agenda for discussion in

the meeting pursuant to Sub-section (3), the member shall give a notice to the Secretary of the Commission stating the subject matter and reason for such discussion at least twenty-four hours before the meeting.

As soon as such a notice is received, the Secretary of the Commission shall inform all members thereof, and that matter shall be deemed to be included in the agenda of the meeting of the Commission.

(5) Notwithstanding anything contained in Sub-sections (3) and (4), with the consent of all members present in the meeting of the Commission, discussion and decision may also be held on matters not included in the agenda.

(6) If more than fifty percent of the members currently holding office in the Commission are present, the quorum for the meeting of the Commission shall be deemed to have been met.

(7) The meeting of the Commission shall be chaired by the Chairperson.

(8) The decision of the Commission shall be made by a majority of votes, and in case of a tie, the Chairperson shall cast the deciding vote.

(9) The Secretary of the Commission shall prepare the record of the decision of the Commission and keep it with the signatures of the Chairperson and members.

(10) An officer of the Nepal Civil Service of the gazetted first class shall serve as the Secretary of the Commission. Until such an employee is appointed, the senior-most employee of the Commission shall serve as the Secretary of the Commission.

(11) Other procedures relating to the meeting of the Commission shall be as determined by the Commission.

18. Member Not to Participate in Decision-Making Process in Case of Conflict of Interest: If any member has an interest, concern or stake in any matter pending before the Commission, or if any other close relative of that member is directly affected or benefitted, such member shall give prior notice of such matter to the Commission and shall not participate in the decision-making process made by the Commission on that matter. 19. Division of Work: The division of work of the Chairperson and members shall be as specified by the Commission. 20. Acting Capacity: In case the office of the Chairperson falls vacant for any reason, is unable to perform the duties of his/her office pursuant to Sub-article (6) of Article 101 of the Constitution, goes on a foreign trip, or remains on leave for more than seven days, the senior-most member of the Commission shall act as the Acting Chairperson of the Commission. 21. Act or Proceeding of Commission Not to be Invalidated: No act or proceeding of the Commission shall be invalidated merely by reason of a vacancy in the position of the Chairperson or any member. Chapter-5

Miscellaneous

22.

Organizational Structure and Employees of the Commission: (1) The organizational structure and staffing of the Commission shall be as approved by the Government of Nepal. (2) The employees required for the conduct of business of the Commission shall be provided by the Government of Nepal. 23. Official Dignity and Conduct: (1) A member shall observe the following official dignity: (a) To perform the duties of office independently, impartially and honestly to protect and promote the rights and interests of women and for women's empowerment. (b) Not to do any act that creates a disturbance in the relations between different castes, communities and sects. (2) A member shall observe the official conduct as per this Act or prevailing federal law. 24. Duty to Provide Assistance in Work and Proceedings: If the Commission requests the

assistance of any body or official in the course of performing its functions, it shall be the duty of such body or official to provide such assistance. 25. Power to Send Letter for Action: If any body or official knowingly fails to implement the order, decision or recommendation given by the Commission pursuant to the Constitution or this Act, or fails to provide necessary assistance to the Commission, the Commission may send a letter for necessary action to the controlling body or official of such body or official. 26. Annual Report: (1) The Commission shall submit an annual report of its work and proceedings to the President within three months from the date of expiry of a fiscal year. (2) The annual report pursuant to Sub-section (1) shall include the following matters in addition to other matters: (a) Details of implementation and cost expenditure of the annual program of the Commission. (b) Details of complaints received by the Commission and details of decisions and orders made by the Commission on such complaints. (c) Details of suggestions given by the Commission to the Government of Nepal or any other body, recommendations made to such body, and the implementation status of such recommendations. (d) Status of financial and physical resources of the Commission and their utilization. (e) Details of on-site monitoring, if any, conducted by the Commission. (f) Details of other work and proceedings carried out in relation to the fulfillment of the duties to be performed by the Commission under this Act. 27. Liaison with Government of Nepal: The Commission shall liaise with the Government of Nepal through the Ministry of Women, Children and Social Welfare. 28.

Delegation of Powers: The Commission may, as required, delegate any of the powers conferred to it under the Constitution and this Act to the Chairperson, a member or any government employee, subject to the prescribed conditions, to exercise and observe such powers. 29. Power to Make Rules: (1) The Commission may make necessary rules for the implementation of this Act. (2) If the rules made pursuant to Sub-section (1) contain matters that impose financial burden or liability on the Government of Nepal, the Commission shall obtain the consent of the Ministry of Finance. (3) The rules made by the Commission pursuant to Sub-section (1) shall commence from the date of their publication in the Nepal Gazette. 30. Power to Issue Directives: The Commission may, subject to this Act and the rules made under this Act, issue necessary directives for the smooth conduct or causing the conduct of the work to be performed. 31. Repeal and Saving: (1) The National Women Commission Act, 2063 is hereby repealed. (2) The work and proceedings performed under the National Women Commission Act, 2063 shall be deemed to have been performed under this Act. (3) Complaints pending before the Commission under the National Women Commission Act, 2063 at the time of the commencement of this Act shall be transferred to the Commission under this Act. (4) The office bearers serving in the Commission under the National Women Commission Act, 2063 at the time of the commencement of this Act shall be automatically removed from office after the commencement of this Act.